

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

16. SONIA JOHNSON V. THOMAS JOHNSON

PFL20190519

Petitioner filed a Request for Order (RFO) on February 25, 2026, following the court's denial of her ex parte application. Petitioner seeks an order from the court to place the proceeds of the sale of the former marital residence into a constructive trust. Petitioner further seeks Family Code section 271 sanctions in the amount of \$2,500. Upon reviewing the court file, there is no Proof of Service showing the RFO was served on Respondent.

Petitioner appeared for the hearing on April 23, 2026, and requested the matter be continued to allow her to perfect service. The court granted the request and continued the matter to June 11, 2026.

Proof of service shows Respondent was served on May 11, 2026.

Petitioner filed an Income and Expense Declaration on May 28, 2026. It was served to Respondent on May 28th.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants the request of Petitioner to place the proceeds of the sale of the home in a constructive trust account provided by Petitioner.

Petitioner's request for Family Code section 271 sanctions is denied. Petitioner is not represented by counsel, and as such, sanctions in the form of attorney's fees is not appropriate.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT GRANTS THE REQUEST OF PETITIONER TO PLACE THE PROCEEDS OF THE SALE OF THE HOME IN A CONSTRUCTIVE TRUST ACCOUNT PROVIDED BY PETITIONER. PETITIONER'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS IS DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S

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ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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**17. KYRA MCAFFEE V. MAXWELL MCAFFEE (JOINED PARTY: BRIAN AND CORRINE
BUNCH) PFL20210499**

Joined Parties filed an Order to Show Cause and Affidavit for Contempt on January 12, 2026. Petitioner and Respondent were properly served. Parties appeared on March 19, 2026 for the initial arraignment. The court appointed the office of the Public Defender to Petitioner, subject to their review and determination of eligibility.

Parties are ordered to appear for further arraignment.

**TENTATIVE RULING #17: PARTIES ARE ORDERED TO APPEAR FOR FURTHER
ARRAIGNMENT.**